IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-522

CP(CAA) No. 26/230/232/ND/2022 (2nd Motion)

IN THE MATTER OF:

APIS Natural Products Ltd & Anr. And APIS India Ltd. **....Applicant**

SECTION

U/s 230-232

Order delivered on 18.10.2022

CORAM:
JUSTICE TELAPROLU RAJANI,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: PCA Abhishek Nahta along with Adv Rishabh Sachdeva
For the OL	: Hemlata Rawat
For the IT Dept.	: Kunal Sharma & Zehra Khan

ORDER

We have heard the Counsel for Applicant as well as Proxy Counsel for RD and the OL. Proxy Counsel for RD submitted that they had made certain observations and had required the Petitioner/ Applicant Company to file an affidavit with respect to Transferor Company No. 1. Ld. Counsel for Applicant submitted that they have filed the requisite affidavit. Ld. Counsel for OL submitted that they had made certain observations which are of factual nature to which the Counsel for Applicant submitted that the Tribunal may adjudicate with respect to those observations. Ld. Counsel for Income Tax Department submitted that they have filed their report in respect of all the Companies and the same has appeared on the e-portal of the Tribunal. **Order in this matter is reserved.**

-Sd/-

(RAHUL BHATNAGAR)
MEMBER (T)

-Sd/-

(JUSTICE TELAPROLU RAJANI)
MEMBER (J)

Md Saddam